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guage that can be construed to create a warranty of safety. Nor does the clause so much as suggest that the charterer is liable for all damages arising out of unsafe port conditions. In fact, the trade association that promulgated the ASBATANKVOY form used in this case specifically acknowledged that the language of “the clause *does not specify* whether the charterer absolutely warrants the safety of the berth.” Brief for Maritime Law Association of the United States et al. as *Amici Curiae* on Pet. for Cert. 19 (emphasis added).

Notwithstanding this, the majority states that the clause “requires the charterer to designate a ‘safe’ berth” and that requirement “binds the charterer to a warranty of safety.” *Ante*, at 356. But certainly not every obligation in a contract is a warranty. See *Brooks, Tarlton, Gilbert, Douglas & Kressler v. United States Fire Ins. Co.*, 832 F. 2d 1358, 1375, n. 14 (CA5 1987). Parties often agree to obligations that govern only their conduct without making any assurances as to an ultimate result. For example, “[a] promise to repair parts of [a] powertrain for six years is a promise that the manufacturer will behave in a certain way, not a warranty that the vehicle will behave in a certain way.” *Cosman v. Ford Motor Co.*, 285 Ill. App. 3d 250, 257, 674 N. E. 2d 61, 66 (1996). The majority does not confront, or even acknowledge, this distinction. Instead, it indifferently conflates a duty to take a certain action—“designat[e]” a wharf understood to be safe—with a warranty guaranteeing a certain result—the ultimate safety of the berth.³

By conflating an action with an outcome, the majority converts every obligation tangentially related to safety into a warranty of safety. Consider the contract in this case, for example. If the language stating that the charterer “shall . . . designat[e] and procur[e]” a “safe place or wharf” creates

³I am skeptical that the phrase “place or wharf” can be read to include the entire berth. But CARCO failed to develop any argument related to the scope of this phrase, so I do not address the issue.

a warranty of safety, then so does the language stating that “[t]he vessel shall load and discharge at [a] safe place or wharf.” Addendum to Brief for Petitioners 8a. There is no textual reason that an obligation to “designat[e]” is any different from an obligation to “discharge.” *Ibid.* And policy-based rationalizations cannot justify a distinction because “[n]either tort principles nor policy objectives . . . override the safe-berth clause’s unambiguous meaning.” *Ante*, at 364. Thus, employing the majority’s approach, the safe-berth clause contains two competing warranties of safety—one from the charterer and one from the vessel master—that could impose conflicting obligations.⁴ Courts typically avoid construing contracts in such a manner. See *Mastrobuono v. Shearson Lehman Hutton, Inc.*, 514 U.S. 52, 64 (1995) (rejecting an interpretation that the Court believed “se[t] up . . . two clauses in conflict with one another”); *United States v. Pielago*, 135 F.3d 703, 710 (CA11 1998) (“It is a cardinal principle of contract law that no term of a contract should be construed to be in conflict with another unless no other reasonable construction is possible”). Setting aside this contract, the majority makes no attempt to limit its expan-

⁴To support its assertion that no conflict exists, the majority rewrites the text of the safe-berth clause. The majority asserts that “[t]he vessel master’s duty is only to ‘load and discharge’ at the chosen safe berth.” *Ante*, at 361 (emphasis added). But that is not what the clause says. The safe-berth clause states: “The vessel shall load and discharge at any safe place or wharf.” Addendum to Brief for Petitioners 8a (emphasis added). And, by requiring the charterer to pay for lighterage expenses resulting from the designation of an unsafe port, the clause specifically contemplates the vessel master declining to discharge at a place or wharf that is not safe. *Ibid.*; see also *Mencke v. Cargo of Java Sugar*, 187 U.S. 248, 253 (1902) (requiring the charterer to pay lighterage expenses where vessel discharged at a location other than the chosen berth). The “which” clause in the provision—“which shall be designated and procured by the Charterer”—modifies “place or wharf,” creating a separate obligation for the charterer. Addendum to Brief for Petitioners 8a. That separate obligation, however, does not negate the express obligation imposed on the vessel. *Ibid.*

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sive interpretive approach or provide the barest of explanation as to why all obligations that involve the word “safe” should not be construed as warranties of safety.

In a contract replete with express language creating warranties, I would not construe the plain language of the safe-berth clause as indirectly creating contradictory warranties of safety. And I certainly cannot agree with the majority’s conclusion that the safe-berth clause “unambiguously” establishes a warranty of safety by the charterer. *Ante*, at 365.

2

Perhaps recognizing the weakness of its assertion that the safe-berth clause contains a duty or warranty of safety, the majority pivots to an independent legal theory. It claims that the safe-berth clause constitutes a material statement of fact and therefore creates a warranty. *Ante*, at 357. The majority’s invocation of this theory is puzzling, to say the least.

As an initial matter, this issue was not preserved in the Court of Appeals, which, understandably, did not address the question. *In re Frescati Shipping Co.*, 718 F. 3d 184, 200–203 (CA3 2013). Nor was the issue developed before this Court. All we have before us is one conclusory paragraph in the United States’ brief. See Brief for United States 25. Accordingly, I would decline to address this unpreserved and undeveloped issue.

Even setting aside forfeiture, the majority’s analysis is questionable in multiple respects. First, the majority asserts that “the safe-berth clause contains a statement of material fact regarding the condition of the berth selected by the charterer.” *Ante*, at 357. Not so. The safe-berth clause says nothing about the safety of the port actually selected by CARCO (the Paulsboro berth), or any specific berth for that matter. It states only that the charterer “shall . . . designat[e]” a place or wharf. The majority infers from CARCO’s selection of the Paulsboro berth that CARCO believed the

place or wharf was safe. But that is not a statement of fact; it is an inference. I hesitate to equate the two without briefing on the issue, or even a single example of a court adopting this approach.

Second, even assuming the safe-berth clause contains a statement of fact, it is not clear that the Court is in a position to decide whether that statement of fact is “material.” Many jurisdictions appear to treat materiality as a question of fact when determining whether a statement creates a warranty. *Royal Bus. Machines, Inc. v. Lorraine Corp.*, 633 F. 2d 34, 43 (CA7 1980) (“Whether a seller affirmed a fact or made a promise amounting to a warranty is a question of fact reserved for the trier of fact”); *McDonnell Douglas Corp. v. Thiokol Corp.*, 124 F. 3d 1173, 1176 (CA9 1997) (“Whether the seller’s representations formed part of the basis of the parties’ bargain is a question of fact”); *Crothers v. Cohen*, 384 N. W. 2d 562, 563 (Minn. App. 1986) (“Whether a given representation constitutes a warranty is ordinarily a question of fact for the jury”); *General Supply & Equip. Co. v. Phillips*, 490 S. W. 2d 913, 917 (Tex. Civ. App. 1972) (citing cases from Illinois, Iowa, Alabama, and Ohio). And “our cases have recognized in other contexts that the materiality inquiry, involving as it does ‘delicate assessments of the inferences a “reasonable [decisionmaker]” would draw from a given set of facts and the significance of those inferences to him, [is] peculiarly on[e] for the trier of fact.’” *United States v. Gaudin*, 515 U. S. 506, 512 (1995). Although this Court has relied on factual findings to support a materiality conclusion, *Davison v. Von Lingen*, 113 U. S. 40, 50 (1885), I am not aware of a case in which this Court has treated the materiality inquiry as a pure question of law without relying on any factual findings whatsoever. Again, without briefing on this issue, I would hesitate to depart, without explanation, from the approach taken by many courts throughout the country.

Third, assuming the contract contains a statement of fact regarding the safety of the berth and further assuming that

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materiality is a question of law, I am unpersuaded by the majority's materiality analysis. Materiality must turn at least in part on a statement's "tendency to induce the making of the contract." 22 R. Lord, *Williston on Contracts* § 58.11, p. 41 (4th ed. 2017). The majority's opinion says nothing about that (likely fact-driven) question. It first states that the safety of the selected berth is "the entire root of the safe-berth clause" and "the very reason for the clause's inclusion." *Ante*, at 357. Even accepting the majority's interpretation, merely proving that a statement is included in a contract does not mean that it is material. If that were the law, then every statement in a contract would be material and therefore constitute a warranty. That cannot be right. The majority next concludes that "[u]nder any conception of materiality and any view of the parties' intent, the charterer's assurance [of safety with no conditions] surely counts as material." *Ibid.* But what is the basis for this conclusion? The majority's experience negotiating maritime contracts? It defies reality to assert that a standard provision in a form contract—which has been subject to different interpretations for nearly three decades—induced *every single vessel master* using that form contract to enter into the agreement. We should recognize this for what it is: an unsupported judicial pronouncement on a question of fact.

The majority's attempt to shore up its analysis with its alternative statement-of-fact theory makes no difference to the outcome of this case, because the majority erroneously holds that the safe-berth clause contains an absolute duty that was breached. See *ante*, at 355–356; *supra*, at 368–371. But its unreasoned dicta will undoubtedly cause problems for lower courts and parties in the future.

II

The lack of unambiguous language creating a warranty of safety in the safe-berth clause does not end our inquiry. "In this endeavor, as with any other contract, the parties' intentions control." *M&G Polymers USA, LLC v. Tackett*,

574 U. S. 427, 435 (2015) (quoting *Stolt-Nielsen S. A. v. AnimalFeeds Int'l Corp.*, 559 U. S. 662, 682 (2010)); see also *ante*, at 355. The vessel's owner and the United States argue that, setting aside the plain meaning of the contract's text, longstanding industry custom supports interpreting the safe-berth clause as a warranty of safety. I would remand for factfinding on this issue.

Under both “general maritime law” and ordinary principles of contract interpretation, evidence of an established “custom and usage” can be used as an aid to “determin[e] the parties’ intent” and the meaning of the language included in the contract. *Stolt-Nielsen*, 559 U. S., at 674, n. 6 (internal quotation marks omitted); see also U. C. C. § 1–303 Comment 3 (2017); Restatement (Second) of Contracts § 220. But “the existence and scope of a particular usage is usually a question of fact.” *Sun Oil Co. v. Wortman*, 486 U. S. 717, 732, n. 4 (1988); see also U. C. C. § 1–303(c); Restatement (Second) of Contracts § 219, Comment *a*; § 222(2). Here, we have no factual findings from the District Court to support a custom-or-usage argument. Such findings seem particularly necessary in this case: “A trade usage can of course be confined to a particular geographical area,” 5 M. Kniffin, *Corbin on Contracts* § 24.13, p. 110 (J. Perillo ed., rev. 1998), and different areas of the country appeared to have different understandings of the safe-berth clause at the time of contracting. See *ante*, at 354–355 (recognizing Circuit split); Brief for North American Export Grain Association as *Amicus Curiae* 9 (stating that in “New Orleans . . . safe-berth clauses are understood to impose due diligence obligations”). Accordingly, I would remand for factual findings on the question whether the parties entered into the charter party with knowledge of an established custom or usage.

* * *

I appreciate the majority's desire to interpret the safe-berth clause in a manner that provides clarity to the mari-

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time industry. The plain meaning of the contract's text, however, does not support the majority's interpretation. Fortunately, the majority's opinion applies only to this specific contract, and its assertions regarding a material statement of fact are but dicta. Because I would reverse the judgment of the Court of Appeals and remand for further proceedings, I respectfully dissent.

Syllabus

KANSAS *v.* GLOVER

CERTIORARI TO THE SUPREME COURT OF KANSAS

No. 18–556. Argued November 4, 2019—Decided April 6, 2020

A Kansas deputy sheriff ran a license plate check on a pickup truck, discovering that the truck belonged to respondent Glover and that Glover's driver's license had been revoked. The deputy pulled the truck over because he assumed that Glover was driving. Glover was in fact driving and was charged with driving as a habitual violator. He moved to suppress all evidence from the stop, claiming that the deputy lacked reasonable suspicion. The District Court granted the motion, but the Court of Appeals reversed. The Kansas Supreme Court in turn reversed, holding that the deputy violated the Fourth Amendment by stopping Glover without reasonable suspicion of criminal activity.

Held: When the officer lacks information negating an inference that the owner is driving the vehicle, an investigative traffic stop made after running a vehicle's license plate and learning that the registered owner's driver's license has been revoked is reasonable under the Fourth Amendment. Pp. 380–386.

(a) An officer may initiate a brief investigative traffic stop when he has “a particularized and objective basis” to suspect legal wrongdoing. *United States v. Cortez*, 449 U.S. 411, 417. The level of suspicion required is less than that necessary for probable cause and “depends on ‘the factual and practical considerations of everyday life on which reasonable and prudent men, not legal technicians, act.’” *Prado Nava-rette v. California*, 572 U.S. 393, 402. Courts must therefore permit officers to make “commonsense judgments and inferences about human behavior.” *Illinois v. Wardlow*, 528 U.S. 119, 125. Pp. 380–381.

(b) Here, the deputy's commonsense inference that the owner of a vehicle was likely the vehicle's driver provided more than reasonable suspicion to initiate the stop. That inference is not made unreasonable merely because a vehicle's driver is not always its registered owner or because Glover had a revoked license. Though common sense suffices to justify the officer's inference, empirical studies demonstrate that drivers with suspended or revoked licenses frequently continue to drive. And Kansas' license-revocation scheme, which covers drivers who have already demonstrated a disregard for the law or are categorically unfit to drive, reinforces the reasonableness of the inference that an individual with a revoked license will continue to drive. Pp. 381–383.

Syllabus

(c) Glover’s counterarguments are unpersuasive. He argues that the deputy’s inference was unreasonable because it was not grounded in his law enforcement training or experience. Such a requirement, however, is inconsistent with this Court’s Fourth Amendment jurisprudence. See, *e. g.*, *Navarette*, 572 U. S., at 402. It would also place the burden on police officers to justify their inferences by referring to training materials or experience, and it would foreclose their ability to rely on common sense obtained outside of their work duties. Glover’s argument that Kansas’ view would permit officers to base reasonable suspicion exclusively on probabilities also carries little force. Officers, like jurors, may rely on probabilities in the reasonable suspicion context. See, *e. g.*, *United States v. Sokolow*, 490 U. S. 1, 8–9. Moreover, the deputy here did more than that: He combined facts obtained from a database and commonsense judgments to form a reasonable suspicion that a specific individual was potentially engaged in specific criminal activity. Pp. 383–385.

(d) The scope of this holding is narrow. The reasonable suspicion standard “takes into account the totality of the circumstances.” *Navarette*, 572 U. S., at 397. The presence of additional facts might dispel reasonable suspicion, but here, the deputy possessed no information sufficient to rebut the reasonable inference that Glover was driving his own truck. Pp. 385–386.

308 Kan. 590, 422 P. 3d 64, reversed and remanded.

THOMAS, J., delivered the opinion of the Court, in which ROBERTS, C. J., and GINSBURG, BREYER, ALITO, KAGAN, GORSUCH, and KAVANAUGH, JJ., joined. KAGAN, J., filed a concurring opinion, in which GINSBURG, J., joined, *post*, p. 387. SOTOMAYOR, J., filed a dissenting opinion, *post*, p. 391.

Toby Crouse, Solicitor General of Kansas, argued the cause for petitioner. With him on the briefs were *Derek Schmidt*, Attorney General of Kansas, *Jeffrey A. Chanay*, Chief Deputy Attorney General, *Kristafer Ailslieger* and *Brant M. Laue*, Deputy Solicitors General, and *Natalie Chalmers*, *Bryan C. Clark*, *Dwight R. Carswell*, and *Jodi Litfin*, Assistant Solicitors General.

Michael R. Huston argued the cause for the United States as *amicus curiae* urging reversal. With him on the brief were *Solicitor General Francisco*, *Assistant Attorney General Benczkowski*, *Eric J. Feigin*, and *Amanda B. Harris*.

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Sarah E. Harrington argued the cause for respondent. With her on the brief were *Charles H. Davis*, *Erica Oleszczuk Evans*, *Daniel Woofter*, and *Elbridge Griffy IV*.*

JUSTICE THOMAS delivered the opinion of the Court.

This case presents the question whether a police officer violates the Fourth Amendment by initiating an investigative traffic stop after running a vehicle's license plate and learning that the registered owner has a revoked driver's license. We hold that when the officer lacks information negating an inference that the owner is the driver of the vehicle, the stop is reasonable.

I

Kansas charged respondent Charles Glover, Jr., with driving as a habitual violator after a traffic stop revealed that he was driving with a revoked license. See Kan. Stat. Ann. § 8–285(a)(3) (2001). Glover filed a motion to suppress all evidence seized during the stop, claiming that the officer

*Briefs of *amici curiae* urging reversal were filed for the State of Oklahoma et al. by *Mike Hunter*, Attorney General of Oklahoma, *Mithun Mansinghani*, Solicitor General, *Randall Yates*, Assistant Solicitor General, and *Kevin T. Kane*, Chief State's Attorney of Connecticut, and by the Attorneys General for their respective States as follows: *Steve Marshall* of Alabama, *Leslie Rutledge* of Arkansas, *Chris Carr* of Georgia, *Curtis T. Hill, Jr.*, of Indiana, *Andy Beshear* of Kentucky, *Doug Peterson* of Nebraska, *Gurbir S. Grewal* of New Jersey, *Hector H. Balderas* of New Mexico, *Dave Yost* of Ohio, *Josh Shapiro* of Pennsylvania, *Alan Wilson* of South Carolina, *Herbert H. Slatery III* of Tennessee, *Ken Paxton* of Texas, *Sean D. Reyes* of Utah, and *Patrick Morrissey* of West Virginia; for the National District Attorneys Association by *Scott A. Keller* and *Benjamin A. Geslison*; and for the National Fraternal Order of Police by *Larry H. James*.

Briefs of *amici curiae* urging affirmance were filed for the Electronic Privacy Information Center et al. by *Marc Rotenberg* and *Alan Butler*; for Fines and Fees Justice Center et al. by *Seanna Brown*; for the National Association of Criminal Defense Lawyers by *David Debold*, *Brandon L. Boxler*, and *Barbara E. Bergman*; for The Rutherford Institute by *D. Alicia Hickok* and *John W. Whitehead*; and for Andrew Manuel Crespo by *Mr. Crespo, pro se*.

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lacked reasonable suspicion. Neither Glover nor the police officer testified at the suppression hearing. Instead, the parties stipulated to the following facts:

“1. Deputy Mark Mehrer is a certified law enforcement officer employed by the Douglas County Kansas Sheriff’s Office.

“2. On April 28, 2016, Deputy Mehrer was on routine patrol in Douglas County when he observed a 1995 Chevrolet 1500 pickup truck with Kansas plate 295ATJ.

“3. Deputy Mehrer ran Kansas plate 295ATJ through the Kansas Department of Revenue’s file service. The registration came back to a 1995 Chevrolet 1500 pickup truck.

“4. Kansas Department of Revenue files indicated the truck was registered to Charles Glover Jr. The files also indicated that Mr. Glover had a revoked driver’s license in the State of Kansas.

“5. Deputy Mehrer assumed the registered owner of the truck was also the driver, Charles Glover Jr.

“6. Deputy Mehrer did not observe any traffic infractions, and did not attempt to identify the driver [of] the truck. Based solely on the information that the registered owner of the truck was revoked, Deputy Mehrer initiated a traffic stop.

“7. The driver of the truck was identified as the defendant, Charles Glover Jr.” App. to Pet. for Cert. 60–61.

The District Court granted Glover’s motion to suppress. The Court of Appeals reversed, holding that “it was reasonable for [Deputy] Mehrer to infer that the driver was the owner of the vehicle” because “there were specific and articulable facts from which the officer’s common-sense inference gave rise to a reasonable suspicion.” 54 Kan. App. 2d 377, 385, 400 P. 3d 182, 188 (2017).

The Kansas Supreme Court reversed. According to the court, Deputy Mehrer did not have reasonable suspicion because his inference that Glover was behind the wheel

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amounted to “only a hunch” that Glover was engaging in criminal activity. 308 Kan. 590, 591, 422 P. 3d 64, 66 (2018). The court further explained that Deputy Mehrer’s “hunch” involved “applying and stacking unstated assumptions that are unreasonable without further factual basis,” namely, that “the registered owner was likely the primary driver of the vehicle” and that “the owner will likely disregard the suspension or revocation order and continue to drive.” *Id.*, at 595–597, 422 P. 3d, at 68–70. We granted Kansas’ petition for a writ of certiorari, 587 U. S. 918 (2019), and now reverse.

II

Under this Court’s precedents, the Fourth Amendment permits an officer to initiate a brief investigative traffic stop when he has “a particularized and objective basis for suspecting the particular person stopped of criminal activity.” *United States v. Cortez*, 449 U. S. 411, 417–418 (1981); see also *Terry v. Ohio*, 392 U. S. 1, 21–22 (1968). “Although a mere ‘hunch’ does not create reasonable suspicion, the level of suspicion the standard requires is considerably less than proof of wrongdoing by a preponderance of the evidence, and obviously less than is necessary for probable cause.” *Prado Navarette v. California*, 572 U. S. 393, 397 (2014) (quotation altered); *United States v. Sokolow*, 490 U. S. 1, 7 (1989).

Because it is a “less demanding” standard, “reasonable suspicion can be established with information that is different in quantity or content than that required to establish probable cause.” *Alabama v. White*, 496 U. S. 325, 330 (1990). The standard “depends on the factual and practical considerations of everyday life on which *reasonable and prudent men*, not legal technicians, act.” *Navarette, supra*, at 402 (quoting *Ornelas v. United States*, 517 U. S. 690, 695 (1996); emphasis added; internal quotation marks omitted). Courts “cannot reasonably demand scientific certainty . . . where none exists.” *Illinois v. Wardlow*, 528 U. S. 119, 125 (2000). Rather, they must permit officers to make “com-

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monsense judgments and inferences about human behavior.” *Ibid.*; see also *Navarette, supra*, at 403 (noting that an officer “‘need not rule out the possibility of innocent conduct’”).

III

We have previously recognized that States have a “vital interest in ensuring that only those qualified to do so are permitted to operate motor vehicles [and] that licensing, registration, and vehicle inspection requirements are being observed.” *Delaware v. Prouse*, 440 U. S. 648, 658 (1979). With this in mind, we turn to whether the facts known to Deputy Mehrer at the time of the stop gave rise to reasonable suspicion. We conclude that they did.

Before initiating the stop, Deputy Mehrer observed an individual operating a 1995 Chevrolet 1500 pickup truck with Kansas plate 295ATJ. He also knew that the registered owner of the truck had a revoked license and that the model of the truck matched the observed vehicle. From these three facts, Deputy Mehrer drew the commonsense inference that Glover was likely the driver of the vehicle, which provided more than reasonable suspicion to initiate the stop.

The fact that the registered owner of a vehicle is not always the driver of the vehicle does not negate the reasonableness of Deputy Mehrer’s inference. Such is the case with all reasonable inferences. The reasonable suspicion inquiry “falls considerably short” of 51% accuracy, see *United States v. Arvizu*, 534 U. S. 266, 274 (2002), for, as we have explained, “[t]o be reasonable is not to be perfect,” *Heien v. North Carolina*, 574 U. S. 54, 60 (2014).

Glover’s revoked license does not render Deputy Mehrer’s inference unreasonable either. Empirical studies demonstrate what common experience readily reveals: Drivers with revoked licenses frequently continue to drive and therefore to pose safety risks to other motorists and pedestrians. See, e. g., 2 T. Neuman et al., National Coop. Hwy. Research Program Report 500: A Guide for Addressing Collisions In-

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volving Unlicensed Drivers and Drivers With Suspended or Revoked Licenses, p. III–1 (2003) (noting that 75% of drivers with suspended or revoked licenses continue to drive); National Hwy. and Traffic Safety Admin., Research Note: Driver License Compliance Status in Fatal Crashes 2 (Oct. 2014) (noting that approximately 19% of motor vehicle fatalities from 2008–2012 “involved drivers with invalid licenses”).

Although common sense suffices to justify this inference, Kansas law reinforces that it is reasonable to infer that an individual with a revoked license may continue driving. The State’s license-revocation scheme covers drivers who have already demonstrated a disregard for the law or are categorically unfit to drive. The Division of Vehicles of the Kansas Department of Revenue (Division) “shall” revoke a driver’s license upon certain convictions for involuntary manslaughter, vehicular homicide, battery, reckless driving, fleeing or attempting to elude a police officer, or conviction of a felony in which a motor vehicle is used. Kan. Stat. Ann. §§8–254(a), 8–252. Reckless driving is defined as “driv[ing] any vehicle in willful or wanton disregard for the safety of persons or property.” §8–1566(a). The Division also has discretion to revoke a license if a driver “[h]as been convicted with such frequency of serious offenses against traffic regulations governing the movement of vehicles as to indicate a disrespect for traffic laws and a disregard for the safety of other persons on the highways,” “has been convicted of three or more moving traffic violations committed on separate occasions within a 12-month period,” “is incompetent to drive a motor vehicle,” or “has been convicted of a moving traffic violation, committed at a time when the person’s driving privileges were restricted, suspended[,] or revoked.” §§8–255(a)(1)–(4). Other reasons include violating license restrictions, §8–245(c), being under house arrest, §21–6609(c), and being a habitual violator, §8–286, which Kansas defines as a resident or nonresident who has been convicted three or more times within the past five years of certain enumerated driving offenses, §8–285. The concerns motivating the

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State’s various grounds for revocation lend further credence to the inference that a registered owner with a revoked Kansas driver’s license might be the one driving the vehicle.

IV

Glover and the dissent respond with two arguments as to why Deputy Mehrer lacked reasonable suspicion. Neither is persuasive.

A

First, Glover and the dissent argue that Deputy Mehrer’s inference was unreasonable because it was not grounded in his law enforcement training or experience. Nothing in our Fourth Amendment precedent supports the notion that, in determining whether reasonable suspicion exists, an officer can draw inferences based on knowledge gained only through law enforcement training and experience. We have repeatedly recognized the opposite. In *Navarette*, we noted a number of behaviors—including driving in the median, crossing the center line on a highway, and swerving—that as a matter of common sense provide “sound indicia of drunk driving.” 572 U. S., at 402. In *Wardlow*, we made the unremarkable observation that “[h]eadlong flight—wherever it occurs—is the consummate act of evasion” and therefore could factor into a police officer’s reasonable suspicion determination. 528 U. S., at 124. And in *Sokolow*, we recognized that the defendant’s method of payment for an airplane ticket contributed to the agents’ reasonable suspicion of drug trafficking because we “fe[lt] confident” that “[m]ost business travelers . . . purchase airline tickets by credit card or check” rather than cash. 490 U. S., at 8–9. So too here. The inference that the driver of a car is its registered owner does not require any specialized training; rather, it is a reasonable inference made by ordinary people on a daily basis.

The dissent reads our cases differently, contending that they permit an officer to use only the common sense derived from his “experiences in law enforcement.” *Post*, at 395 (opinion of SOTOMAYOR, J.). Such a standard defies the “common

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sense” understanding of common sense, *i. e.*, information that is accessible to people generally, not just some specialized subset of society. More importantly, this standard appears nowhere in our precedent. In fact, we have stated that reasonable suspicion is an “abstract” concept that cannot be reduced to “a neat set of legal rules,” *Arvizu*, 534 U. S., at 274 (internal quotation marks omitted), and we have repeatedly rejected courts’ efforts to impose a rigid structure on the concept of reasonableness, *ibid.*; *Sokolow, supra*, at 7–8. This is precisely what the dissent’s rule would do by insisting that officers must be treated as bifurcated persons, completely precluded from drawing factual inferences based on the commonly held knowledge they have acquired in their everyday lives.

The dissent’s rule would also impose on police the burden of pointing to specific training materials or field experiences justifying reasonable suspicion for the myriad infractions in municipal criminal codes. And by removing common sense as a source of evidence, the dissent would considerably narrow the daylight between the showing required for probable cause and the “less stringent” showing required for reasonable suspicion. *Prouse*, 440 U. S., at 654; see *White*, 496 U. S., at 330. Finally, it would impermissibly tie a traffic stop’s validity to the officer’s length of service. See *Devenpeck v. Alford*, 543 U. S. 146, 154 (2004). Such requirements are inconsistent with our Fourth Amendment jurisprudence, and we decline to adopt them here.

In reaching this conclusion, we in no way minimize the significant role that specialized training and experience routinely play in law enforcement investigations. See, *e. g.*, *Arvizu, supra*, at 273–274. We simply hold that such experience is not *required* in every instance.

B

Glover and the dissent also contend that adopting Kansas’ view would eviscerate the need for officers to base reasonable suspicion on “specific and articulable facts” particular-

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ized to the individual, see *Terry*, 392 U. S., at 21, because police could instead rely exclusively on probabilities. Their argument carries little force.

As an initial matter, we have previously stated that officers, like jurors, may rely on probabilities in the reasonable suspicion context. See *Sokolow*, *supra*, at 8–9; *Cortez*, 449 U. S., at 418. Moreover, as explained above, Deputy Mehrer did not rely exclusively on probabilities. He knew that the license plate was linked to a truck matching the observed vehicle and that the registered owner of the vehicle had a revoked license. Based on these minimal facts, he used common sense to form a reasonable suspicion that a specific individual was potentially engaged in specific criminal activity—driving with a revoked license. Traffic stops of this nature do not delegate to officers “broad and unlimited discretion” to stop drivers at random. *United States v. Brignoni-Ponce*, 422 U. S. 873, 882 (1975). Nor do they allow officers to stop drivers whose conduct is no different from any other driver’s. See *Brown v. Texas*, 443 U. S. 47, 52 (1979). Accordingly, combining database information and commonsense judgments in this context is fully consonant with this Court’s Fourth Amendment precedents.¹

V

This Court’s precedents have repeatedly affirmed that “the ultimate touchstone of the Fourth Amendment is “rea-

¹The dissent contends that this approach “pave[s] the road to finding reasonable suspicion based on nothing more than a demographic profile.” *Post*, at 397 (opinion of SOTOMAYOR, J.). To alleviate any doubt, we reiterate that the Fourth Amendment requires, and Deputy Mehrer had, an individualized suspicion that a particular citizen was engaged in a particular crime. Such a particularized suspicion would be lacking in the dissent’s hypothetical scenario, which, in any event, is already prohibited by our precedents. See *United States v. Brignoni-Ponce*, 422 U. S. 873, 876 (1975) (holding that it violated the Fourth Amendment to stop and “question [a vehicle’s] occupants [about their immigration status] when the only ground for suspicion [was] that the occupants appear[ed] to be of Mexican ancestry”).

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sonableness.””” *Heien*, 574 U. S., at 60 (quoting *Riley v. California*, 573 U. S. 373, 381 (2014)). Under the totality of the circumstances of this case, Deputy Mehrer drew an entirely reasonable inference that Glover was driving while his license was revoked.

We emphasize the narrow scope of our holding. Like all seizures, “[t]he officer’s action must be “justified at its inception.””” *Hiibel v. Sixth Judicial Dist. Court of Nev., Humboldt Cty.*, 542 U. S. 177, 185 (2004) (quoting *United States v. Sharpe*, 470 U. S. 675, 682 (1985)). “The standard takes into account the totality of the circumstances—the whole picture.” *Navarette*, 572 U. S., at 397 (internal quotation marks omitted). As a result, the presence of additional facts might dispel reasonable suspicion. See *Terry, supra*, at 28. For example, if an officer knows that the registered owner of the vehicle is in his mid-sixties but observes that the driver is in her mid-twenties, then the totality of the circumstances would not “raise a suspicion that the particular individual being stopped is engaged in wrongdoing.” *Cortez, supra*, at 418; *Ornelas*, 517 U. S., at 696 (“‘Each case is to be decided on its own facts and circumstances’” (quoting *Ker v. California*, 374 U. S. 23, 33 (1963))). Here, Deputy Mehrer possessed no exculpatory information—let alone sufficient information to rebut the reasonable inference that Glover was driving his own truck—and thus the stop was justified.²

* * *

For the foregoing reasons, we reverse the judgment of the Kansas Supreme Court, and we remand the case for further proceedings not inconsistent with this opinion.

It is so ordered.

²The dissent argues that this approach impermissibly places the burden of proof on the individual to negate the inference of reasonable suspicion. *Post*, at 380–381. Not so. As the above analysis makes clear, it is the information possessed by *the officer* at the time of the stop, not any information offered by the individual after the fact, that can negate the inference.

KAGAN, J., concurring

JUSTICE KAGAN, with whom JUSTICE GINSBURG joins, concurring.

When you see a car coming down the street, your common sense tells you that the registered owner may well be behind the wheel. See *ante*, at 381, 386. Not always, of course. Families share cars; friends borrow them. Still, a person often buys a vehicle to drive it himself. So your suspicion that the owner is driving would be perfectly reasonable. See *ibid*.

Now, though, consider a wrinkle: Suppose you knew that the registered owner of the vehicle no longer had a valid driver's license. That added fact raises a new question. What are the odds that someone who has lost his license would continue to drive? The answer is by no means obvious. You might think that a person told not to drive on pain of criminal penalty would obey the order—so that if his car was on the road, someone else (a family member, a friend) must be doing the driving. Or you might have the opposite intuition—that a person's reasons for driving would overcome his worries about violating the law, no matter the possible punishment. But most likely (let's be honest), you just wouldn't know. Especially if you've not had your own license taken away, your everyday experience has given you little basis to assess the probabilities. Your common sense can therefore no longer guide you.

Even so, Deputy Mark Mehrer had reasonable suspicion to stop the truck in this case, and I join the Court's opinion holding as much. Crucially for me, Mehrer knew yet one more thing about the vehicle's registered owner, and it related to his proclivity for breaking driving laws. As the Court recounts, Mehrer learned from a state database that Charles Glover, the truck's owner, had had his license revoked under Kansas law. See *ante*, at 379. And Kansas almost never revokes a license except for serious or repeated driving offenses. See Kan. Stat. Ann. § 8–254 (2001); *ante*, at 382. Crimes like vehicular homicide and manslaughter, or vehicular flight from a police officer, provoke a license revocation; so too do multiple convictions for moving traffic viola-

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tions within a short time. See *ante*, at 382. In other words, a person with a revoked license has already shown a willingness to flout driving restrictions. That fact, as the Court states, provides a “reason[] to infer” that such a person will drive without a license—at least often enough to warrant an investigatory stop. *Ibid.* And there is nothing else here to call that inference into question. That is because the parties’ unusually austere stipulation confined the case to the facts stated above—*i. e.*, that Mehrer stopped Glover’s truck because he knew that Kansas had revoked Glover’s license.

But as already suggested, I would find this a different case if Kansas had barred Glover from driving on a ground that provided no similar evidence of his penchant for ignoring driving laws. Consider, for example, if Kansas had suspended rather than revoked Glover’s license. Along with many other States, Kansas suspends licenses for matters having nothing to do with road safety, such as failing to pay parking tickets, court fees, or child support. See Kan. Stat. Ann. §8–2110(b) (2018 Cum. Supp.); see also, *e. g.*, N. J. Stat. Ann. §39:4–139.10 (West Supp. 2019); Ark. Code Ann. §9–14–239 (Supp. 2019). Indeed, several studies have found that most license suspensions do not relate to driving at all; what they most relate to is being poor. See Brief for Fines and Fees Justice Center et al. as *Amici Curiae* 7. So the good reason the Court gives for thinking that someone with a revoked license will keep driving—that he has a history of disregarding driving rules—would no longer apply. And without that, the case for assuming that an unlicensed driver is at the wheel is hardly self-evident. It would have to rest on an idea about the frequency with which even those who had previously complied with driving laws would defy a State’s penalty-backed command to stay off the roads. But where would that idea come from? As discussed above, I doubt whether our collective common sense could do the necessary work. See *supra*, at 387. Or otherwise said, I suspect that any common sense invoked in this altered context would